

2013 SCC OnLine All 1445

(BEFORE SUNIL AMBWANI AND BHARAT BHUSHAN, JJ.)

Raj Narayan Singh Petitioner

v.

State of U.P. And Others Respondents

Petitioner Counsel:- Dharendra Kr. Srivastava

Respondent Counsel:- C.S.C., Mahboob Ahmad, Upendra Upadhyay

Writ - C No. - 10253 of 2013

Decided on March 5, 2013

Hon'ble Sunil Ambwani, J.

Hon'ble Bharat Bhushan, J.

We have heard learned counsel for the petitioner. Shri Upendra Upadhyay appears for respondent nos. 2, 3 and 4.

By this writ petition the petitioner has prayed for directions to the respondents not to sanction the electricity connection to respondent no. 5, for installation of a motor for tube well through the independent feeder/transformer installed for the petitioner in violation of Clause 3.4 of the U.P. Electricity Supply code, 2005. He has also prayed for writ of mandamus directing the respondent authorities not to interfere with the electricity supply of the petitioner from his independent feeder/transformer for running the motor of his private tube well.

It is submitted that the entire feeder/transformer was established for electricity connection of the petitioner on the costs deposited by the petitioner. The supply of electricity by tapping on his feeder to respondent no. 5 will not only cause interruptions and disturbance to the petitioner, it will also be in violation of Clause 3.4 of the U.P. Electricity Supply Code, 2005.

Shri Upendra Upadhyay appearing for respondent nos. 2, 3 and 4 submits that the petitioner has 2 K.W. connection, for which he may have deposited the cost of drawing the lines and transformer, he does not get any right nor Clause 3.4 of the U.P. Electricity Supply Code, 2005 is attracted in the present case. The provisions of the Clause 3.4 of the Code apply, when the supply is through independent feeder. Clause 3.4 is quoted as below:-

“3.4 Supply through Independent feeders

(a) Load for Arc/Induction furnaces, Rolling Mills, Re-rolling Mills and Mini steel plants, of 1000 KVA and above, shall be released only through an independent feeder and all necessary charges including the feeder cost shall be paid by the consumer.

(b) In other cases including townships/complexes, domestic or non-domestic or institutions, the supply may be given at independent feeder for load above 500 KVA, including those industries mentioned in 3.4(a) above but having load less than 1000 KVA, at the request of the consumer/applicant, if he is willing to bear all applicable charges, subject to technical feasibility and availability of bay/corridor at the substation.

Provided that for releasing the supply to consumer/applicant on independent feeder, having load below 500 KVA, it shall depend on nature and purpose such as emergency services, and such other reasons where continuity of supply is required by consumers, if the licensees so determines, the supply can be released depending on system constraints, technical feasibility, cost parameters, as well as safeguarding the provisions of duty of supply on request as per the Act.

(c) Deleted.

(d) The licensee shall allow tapping of feeders supplying Arc/Induction furnaces, Rolling Mills, Re-rolling Mills and Mini steel plants, with either of these plants, and this shall not be construed as change in process. The tapping of the independent feeder shall be permitted by licensee to other connection having a similar process subject to the following conditions:

(i) Construction of separate feeder from the substation is not possible on account of non-availability of corridor, right of way and bay at the respective sub-station.

(ii) Consent of original consumer has been obtained by prospective consumer for cost sharing of common portion of feeder with the prospective consumer.

(iii) Quality of supply is not likely to be affected and if technically feasible.

(iv) The outdoor metering at the tapping point, and the additional cost due to changes in system shall be done at the cost of prospective consumer. However the cost credit due to removal of the existing system shall not be given to the consumers.

(v) Deleted.

Note: Process of use of electricity means the sub-category mentioned under applicability clause of appropriate tariff schedule as per the latest applicable Tariff Order of the Commission.”

The provisions of Clause 3.4 will apply, where the load is for Arc/Induction furnaces, or the industry is Rolling Mills, Re-Rolling Mills and mini steel plants is above 1000 KVA, and the electricity supply is released through independent feeders. The independent feeders of load above 500 KVA are permitted for industries as above on the request of consumer/applicant, if he is willing to bear all the applicable charges. The tapping from such independent feeder is permitted for licensees on certain conditions, which include consent of original consumer for cost sharing of common portion of feeder with prospective consumer.

Clause 3.4 of the Code is not applicable to the case of the petitioner, running a tube well with 2 HP motor. He does not have any right as he has not deposited the cost of independent feeder to object to tapping.

We may observe here that the tapping may be permitted, if it is feasible to supply electricity to another consumer from the transformer and the lines, which have been drawn, if such transformer and line can bear the load for tube well to be operated by the other consumer.

If respondent no. 2 is of the opinion that the electricity supply to be given to respondent no. 5 through the transformer and lines set up for petitioner will not affect the electricity supply to the petitioner, he may permit supply of electricity from the transformer and lines drawn for supplying electricity to the petitioner. The respondent no. 2 will record satisfaction of such feasibility before allowing the tapping.

The writ petition is disposed of with these observations.

Disclaimer: While every effort is made to avoid any mistake or omission, this casenote/ headnote/ judgment/ act/ rule/ regulation/ circular/ notification is being circulated on the condition and understanding that the publisher would not be liable in any manner by reason of any mistake or omission or for any action taken or omitted to be taken or advice rendered or accepted on the basis of this casenote/ headnote/ judgment/ act/ rule/ regulation/ circular/ notification. All disputes will be subject exclusively to jurisdiction of courts, tribunals and forums at Lucknow only. The authenticity of this text must be verified from the original source.